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|   |                                                                                            | <p>be assigned.” (Code Civ. Proc., § 708.520, subd. (a).)</p> <p>The court may grant the restraining order “upon a showing of need for the order” and also “may require the judgment creditor to provide an undertaking.” (Code Civ. Proc., § 708.520, subd. (b).)</p> <p>Here, Plaintiff submits no evidence that Defendant Capital Managers has attempted to hide, transfer, distribute, or otherwise dissipate its assets, such that there is a need for a restraining order.</p> <p>Plaintiff argues that the fact that Defendant Eventus Holdings sold or transferred its assets raises an inference of misconduct and that inference may be imputed onto Defendant Capital Managers because both companies are wholly or majority-owned by Defendant Sabin Burrell</p> <p>However, the conduct by Defendant Eventus Holdings, however, did not affect Plaintiff’s ability to collect on the judgment against Eventus. Defendant Eventus Holdings posted a \$2.2 million bond to stay enforcement of its judgment.</p> <p>Thus, the court will deny the motion with respect to issuing a restraining order against Defendant Capital Managers.</p> <p>Plaintiff shall give notice of this ruling.</p> |
| 5 | <p><b>Crystalynn Holding, LLC vs. SCP Food Hall LLC</b></p> <p><b>30-2023-01324205</b></p> | <p><u>Motion to Be Relieved as Counsel</u></p> <p>Counsel Karen Lee Hallock’s, Megan A. Divine’s, and DLA Piper LLP (US)’s Motion to Be Relieved as Counsel for Plaintiff Utopia Oriental Investment LLC is GRANTED</p> <p>Counsel Karen Lee Hallock, Megan A. Divine, and DLA Piper LLP (US) are ORDERED to submit to this court a proposed Order Granting Attorney’s Motion to Be Relieved as Counsel – Civil (Form MC-053), that is completely and correctly filled out, within 10 days of this ruling.</p> <p>Within 15 days of receiving the signed Form MC-053 back from the court, Counsel Karen Lee Hallock, Megan A. Divine, and DLA Piper LLP (US) are ORDERED to serve Plaintiff Utopia Oriental</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

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|  |  | <p>Investment LLC with the signed Form MC-053, notice of the Order to Show Cause hearing set forth below, and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d).</p> <p>Counsel Karen Lee Hallock, Megan A. Divine, and DLA Piper LLP (US) shall be relieved as counsel of record for Plaintiff Utopia Oriental Investment LLC effective upon the filing of a proof of service showing timely service of the signed Form MC-053, notice of the Order to Show Cause hearing, and notice of this ruling.</p> <p>The Court SETS a hearing on an Order to Show Cause re: Dismissing the Complaint of Plaintiff Utopia Oriental Investment LLC for Failure to Retain Counsel on October 1, 2026, at 10:00 am in Department N15.</p> <p><u>Pending Motion</u></p> <p>Counsel Karen Lee Hallock, Megan A. Divine, and DLA Piper LLP (US) (Counsel) move to be relieved as counsel for Plaintiff Utopia Oriental Investment LLC (Plaintiff Utopia).</p> <p><u>Standard to Be Relieved as Counsel</u></p> <p>"The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.)</p> <p>The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).)</p> <p>No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).)</p> <p>However, "[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney's Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing</p> |
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|  |  | <p>a consent under Code of Civil Procedure section 284(1)." (Cal. Rules of Court, rule 3.1362(c), italics original.)</p> <p>In addition, "[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney's Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers." (Cal. Rules of Court, rule 3.1362(e), italics original.)</p> <p>Motions to be relieved as counsel "must be served on the client and on all other parties who have appeared in the case" and service must be made by "personal service, electronic service, or mail." (Cal. Rules of Court, rule 3.1362(d).)</p> <p>If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).)</p> <p>"As used in this rule, 'current' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (<i>Ibid.</i>)</p> <p>If the motion is served by electronic mail, "it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." (Cal. Rules of Court, rule 3.1362(d)(2).)</p> <p>The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client's insistence on an action that is not justified under existing law or by good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.)</p> |
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|  |  | <p>However, under the Rules of Professional Conduct, "a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e)." (Rules Prof. Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.)</p> <p>Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in "undue prejudice to the client's interests," (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or "an unreasonable disruption of the orderly processes of justice," (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney's request to withdraw "where such withdrawal would work an injustice or cause undue delay in the proceeding". (<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>)</p> <p>In this case, Counsel has complied with the requirements of the California Rules of Court, including serving the client with the motion papers by mail at the client's last known address and confirming within the last 30 days that the address is the client's current address.</p> <p>Counsel also has declared a justifiable reason to be relieved as counsel — there has been a breakdown in communications and a breach of the material terms of the engagement agreement between Counsel and Plaintiff Utopia, making it unreasonably difficult for Counsel to carry out the engagement and its employment effectively.</p> <p>In addition, the only hearings scheduled in this case are a Case Management Conference and an Order to Show Cause re: Sanctions/Dismissal Failure to Prosecute Defendant Kewen Morgan Zhang, which are not set until October 1, 2026.</p> <p>Thus, Plaintiff Utopia will have sufficient time to find new counsel and will not be unduly prejudiced in its ability to litigate the case.</p> <p>Further, it does not appear that there is much action that Plaintiff Utopia can take in this action.</p> |
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|  |  | <p>Judgment has been entered with respect to Plaintiff Utopia and Defendants SCP Food Hall LLC and SCP Fall Manger LLC. (See ROA #57.)</p> <p>In addition, Plaintiff Utopia has dismissed all of its claims against the only other named Defendant, Kewen (Morgan) Zhang. (See ROA #105.)</p> <p>Thus, there does not appear to be any claims pending between Plaintiff Utopia and any named Defendants.</p> <p>In any case, no opposition has been filed setting forth prejudice to Plaintiff Utopia or any other party should the court grant the motion to be relieved as counsel. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue].)</p> <p>Therefore, the court will grant the motion to be relieved as counsel.</p> <p>However, the proposed order submitted by Counsel is now out of date, and the court will require Counsel to submit a new proposed order that is completely and correctly filled out.</p> <p>In addition, Plaintiff Utopia is a corporation, limited liability company, or other artificial legal entity that cannot represent itself and must retain counsel to act on its behalf in court. (See <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 fn.5; <i>Rogers v. Sonoma County Municipal Court</i> (1988) 197 Cal.App.3d 1314, 1318.)</p> <p>While the ban on self-represented artificial legal entities does not prevent the court from granting the motion to withdraw, it does place pressure on Plaintiff Utopia to obtain new counsel or risk forfeiting important rights through non-representation, such as dismissal of the action or having a default entered. (See <i>Rogers v. Sonoma County Municipal Court, supra</i>, 197 Cal.App.3d at p. 1318; <i>Ferruzzo v. Superior Court</i> (1980) 104 Cal.App.3d 501, 504.)</p> <p>Therefore, it is incumbent upon the court and Counsel to advise Plaintiff Utopia or its representatives of the necessity of obtaining representation and to ensure that they obtain representation. (See <i>Rogers v. Sonoma County Municipal Court, supra</i>, 197 Cal.App.3d at p. 1318.)</p> |
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|   |                                                                                          | <p>The court will issue an order to show cause re: dismissing the complaint of Plaintiff Utopia for failure to retain counsel, and will order that Counsel serve Plaintiff Utopia with the order relieving counsel, notice of the order to show cause re: dismissing the complaint of Plaintiff Utopia for failure to retain counsel, and notice of this ruling.</p> <p>Counsel shall give notice of this ruling in the manner ordered by the court.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 6 | <p><b>Ameris Bank vs. SF Glass Cleaning Solutions</b></p> <p><b>30-2024-01388752</b></p> | <p><u>Motions to Be Relieved as Counsel</u></p> <p>Counsel Jeffery P. Boykin's Motion to Be Relieved as Counsel for Defendant SF Glass Cleaning Solutions is GRANTED.</p> <p>Counsel Jeffery P. Boykin's Motion to Be Relieved as Counsel for Defendant Mei Mei Li is GRANTED.</p> <p>Counsel Jeffery P. Boykin Counsel is ORDERED to submit to this court a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053) that is completely and correctly filled out, for both Defendant SF Glass Cleaning Solutions and Defendant Mei Mei Li, within 10 days of this ruling.</p> <p>Within 15 days of receiving both signed Forms MC-053 back from the court, Counsel Jeffery P. Boykin is ORDERED to serve Defendants SF Glass Cleaning Solutions and Mei Mei Li with the signed Form MC-053, notice of the Order to Show Cause hearing set forth below, and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d).</p> <p>Counsel Jeffery P. Boykin shall be relieved as counsel of record for Defendants SF Glass Cleaning Solutions and Mei Mei Li effective upon the filing of a proof of service showing timely service of the signed Form MC-053, notice of the Order to Show Cause hearing, and notice of this ruling.</p> <p>The Court SETS a hearing on an Order to Show Cause re: Barring Defendant SF Glass Cleaning Solutions from Litigating this Case Without Counsel on December 17, 2026, at 10:00 am in Department N15.</p> <p><u>Pending Motion</u></p> |